

Smt. Ganga Bai vs The Divisional Railway Manager on 11 February, 2021

IN THE COURT OF SHRI NARESH KUMAR LAKA
ADDITIONAL DISTRICT JUDGE - 03, SOUTH EAST,
SAKET COURTS, NEW DELHI

RCA DJ No.111/18

Smt. Ganga Bai
W/o Late Surmaji
R/o- Jhopri Balmiki Nagar
Post WSR Colony, Khantarai,
Rajpur, Chhatisgarh-492008

VS.

1. The Divisional Railway Manager,
Northern Railway (Delhi Division)
Baroda House, New Delhi-110013

2. Raj Kumar
S/o Late Surmaji

3. Sanju
S/o Late Surmaji

4. Shiva
S/o Late Surmaji

5. Ms. Sevanti (Minor)
D/o Late Surmaji
Through her Younger Brother
Sh. Raj Kumar petitioner no.3,

6. Smt. Mathura Devi

All R/o 26/4, Railway Colony,
Hazrat Nizamuddin, New Delhi-110013

.....Re

Date of Institution	: 25.09.2018
Final Arguments heard	: 11.02.2021
Date of Decision	: 23.02.2021
Result	: Allowed

JUDGMENT

Smt. Ganga Bai vs. The Divisional Railway Manager, Northern Railway (Delhi Division) Brief facts Shri Surmaji was an employee of Northern Railway (Delhi Division) and he expired on 19.07.2015 and when his service benefits like provident fund, leave encashment, gratuity, insurance etc were claimed, it was noticed by his department that two women, namely, Mathura Devi and Ganga Bai claimed to be the wives/widows of said Surmaji and consequently the department of Northern Railway directed said persons to obtain a succession certificate from a court of law. As a result, a succession case bearing no. 1598/16 was filed by Smt. Mathura Devi before the Ld. ACJ/CCJ/ARC, South-East District, Saket Courts, New Delhi. In the said case, both Mathura Devi and Ganga Bai claimed to be the legally wedded wife of late Sh. Surmaji.

2. After holding trial, the Ld. ACJ vide judgement dated 17.08.2018 held that neither Mathura Devi nor Ganga Bai proved their status as wife of Surma ji and finally their claims were rejected whereas the succession certificate was allowed to be issued in the names of Sh. Raj Kumar, Sh. Sanju, Sh. Shiva and Ms. Sevanti, the children of late Sh. Surmaji. Aggrieved by the said judgement, Smt. Ganga Bai preferred the present appeal by contending that the decision of the Ld. ACJ is wrong and not in accordance with law by denying the status of Ganga Bai as wife of Surmaji. Smt. Mathura Devi, who was the petitioner in the succession case did not chose to prefer any appeal though her claim was also rejected as a wife/legal heir of Surmaji.

3. I have heard arguments from Shri Vikram Jit Saini, Ld. Counsel for the appellant and Ms. Soumyashree Misra, Ld. Counsel for the respondent no.1 and Shri A.K. Mishra, Ld. Counsel for the respondent no.4, 5 and 6. Record perused.

Reasons for decision

4. As regards the claim of children, which were born out from the wedlock of alleged first and second wife, no specific dispute has been raised. Even otherwise, as per Section 16 of the Hindu Succession Act, the children of first wife or second wife are to be treated as legitimate legal heirs. In this regard the finding of Ld. ACJ supported by judgement of Hon'ble Apex Court in the case of 'Rameshwar Devi vs. State of Bihar' is found in accordance with established position of law.

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5. The main dispute is raised on the point of status of Mathura Devi and Ganga Bai as wife of Shri Surma ji and their respective entitlement. Smt. Ganga Bai claimed to be the first and only legally wife of Sh Surmaji and evidence has been led in this regard, but the Ld. Trial Court gave contradictory findings inasmuch as, on the one hand, it was held that Mathura Devi is not entitled for her claim since she admitted that at the time of her marriage she was aware that Sh. Surmaji was already married and having two children and on the other hand, it was held that when a marriage was subsisting, the marriage of Mathura Devi cannot be recognized unless the first marriage got dissolved or the first wife dies. Thus, it is evident that the factum of first marriage has been held to be proved by the Ld. Trial Court and only on that ground, the second marriage of Mathura Devi was held null and void but while deciding the claim of Ganga Bai, it was held that she failed to establish her marriage with deceased Surmaji. This court finds that the said finding is contrary in itself.

6. Record reveals that Smt Ganga Bai had placed on record copy of an AADHAR Card which finds mentioned name of husband as Surmaji. The Ld. ACJ held that the said AADHAR Card cannot be accepted as an evidence of marriage and it can be used only for identification or address proof. I differ from the said finding which is without any justified basis and rather in my opinion when the said AADHAR Card finds mentioned the name of "husband" it established a relationship between Ganga Bai and Sh. Surmaji as spouse and it cannot be said that the said document is not admissible.

7. Further during the course of arguments, the Ld. counsel for the appellant has placed on record a copy of letter which was purportedly written by Mathura Devi to the Office of Surma ji. The said letter was confronted to Mathura Devi by calling her into witness box and it was admitted to have been written by her. It was marked as Ex.RX-1. In the said letter, there is abundant admissions that Surma ji was married first to Ganga Devi and when Ganga Devi left the company of Surma ji, he married to Mathura Devi. There is no stand that Ganga Devi was not seen or heard of during the last seven years to draw a presumption that she was not alive at the time of marriage of Mathura Devi nor any such claim has been put forth by Mathura Devi ever.

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8. Moreover, the children and the Mathura Devi also deposed the facts which proved the existence of first marriage. The existence of two children at the time of alleged marriage of Mathura Devi also strengthened the case of Ganga Bai about having a marriage with Surma ji. Thus it can be said that Ganga Bai was the first legally wedded wife of Sh. Surmaji, out of whose wedlock even two children were born.

9. Mathura Devi did not challenge the findings of the Trial Court by filing an appeal, therefore, legally speaking her claim cannot be considered in the present appeal but since she is one of the respondents in the present appeal, her contention is being considered. When it has already been held that Smt Ganga Bai was the legally wedded wife of Shri Surma ji, as per Section 5 of the Hindu Marriage Act, 1956, Shri Surma ji was not competent to solemnize second marriage during the subsistence of first marriage and having a living spouse. Such marriage, even if duly performed, is void as per the provisions of the Hindu Marriage Act, 1956 unless a custom is shown to be existing in this regard but no such claim has been made or proved on record. Also for claiming the service benefits, such second marriage would also be required to be recognized by the employer as per its service rules and it cannot be accepted without following due process and in the instant case, no such claim was ever invoked by Surma ji during his life time.

10. The Ld. Counsel for the respondent/Mathura Devi argued that there is a declaration form which was submitted by Sh. Surmaji to the Railway Authority which finds mentioned the status of Mathura Devi as wife of Sh. Surmaji, therefore, she is entitlement for all benefits. In this regard he relied upon certain case laws.

11. From the said declaration form dated 14.07.2015 submitted by Sh. Surmaji to his office, it is seen that it was submitted towards issuance of passes/PTOS where the name of Mathura Devi was mentioned as wife of Surmaji. By virtue of an employment, a government servant is generally

entitled for various claims and benefits like gratuity, provident fund, general insurance amount, medical reimbursement etc. From different service rules, it is observed that the term 'family' of a government servant has different connotation and meaning for availing such benefits differently. That's why separate nomination forms are required to be filled up Smt. Ganga Bai vs. The Divisional Railway Manager, Northern Railway (Delhi Division) for specific purposes. One nomination/declaration form towards a specific claim cannot be read for other claims. Therefore, the declaration form which has been placed on record for issuance of passes/PTOS cannot be treated as a document towards nomination or declaration of other entitlements. Moreover, the said declaration form also finds mentioned at its bottom in para no. (iii) that any alteration in the name of family member which includes the name of adopted child or change in the name of wife etc. must be duly supported by relevant documents and accepted only after following the laid down procedure (after official notification). As such from the perusal of the said bottom note, it is clear that the said declaration form could be recognised only when it has been accepted by the employer after issuance of an official notification which has not been placed on record.

12. The Ld. counsel for the Northern Railway placed on record various other standard formats/forms and none of them find mentioned the name of any nomination. Therefore, the said declaration form is not significant and in the absence of any other nomination, the entitlement has to be decided as per the provisions of the Hindu Succession Act read with specific Service Rules, wherever applicable.

13. In the light of aforesaid facts, this court holds that the claim of Mathura Devi was rightly rejected but claim of Ganga Bai was wrongly denied. It is now held that Ganga Bai being the first legally wedded wife is the only widow (first wife) who is entitled for receiving the service benefits which have been claimed in the Succession Case along with all children of late Surma ji, namely, Raj Kumar, Sanju, Shiva, Ms. Sevanti each having 1/5th equal share.

14. Ld. Counsel for the parties also raised an issue of entitlement of family pension of Surma ji. From the record, it is seen that the said claim has not been claimed in the Succession Case. However, by exercising power under Order 7 Rule 7 CPC, this court can grant a relief which is ancillary or incidental. The Northern Railway/employer will consider the grant of family pension as per its own rules by treating the aforesaid legal heirs subject to fulfilment of other applicable conditions and eligibility.

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15. In the light of the aforesaid observation, the present appeal is allowed and the impugned judgement/decreed/succession certificate passed by Ld. ACJ, South East are partly set aside. Decree sheet be prepared accordingly. Copy of the judgement be sent to the Ld. Trial Court for issuance of Succession Certificate in view of the aforesaid observations after getting the usual bonds and requisite court fees, if any. Ahlmad is directed to send PDF judgement on the what's app mobile number of the counsel for the parties. The appeal file be consigned to record room.

Announced & dictated in the open court on 23.02.2021 (Naresh Kumar Laka) Additional District Judge-03 South East District, Saket Courts, New Delhi.

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